

Court No. - 39

Case :- WRIT - C No. - 6694 of 2021

Petitioner :- Sudarshan Yadav

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Pradeep Kumar Chaurasia

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

As prayed, put up as fresh on **25.03.2021**.

Order Date :- 15.3.2021

Nitin Verma

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Respondent :- State of U.P. and Another

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Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

The petitioner herein seeks to challenge the demand notice dated 07.07.2020 on the ground that his father had a valid domestic electricity connection in the premises-in-question and the allegations of theft of electricity on the basis of inspection report dated 12.12.2019 are false.

The provisional assessment notice is being challenged on the ground that the objection filed by the petitioner personally on 21.01.2020 to the provisional assessment notice dated 29.12.2019 had not been considered and decided by the competent authority, i.e. respondent no.2.

It is contended that no date or time was fixed for personal hearing of the petitioner on the objections raised by him in writing on 21.01.2020. The final assessment order dated 07.07.2020, therefore, is in violation of the principle of natural justice.

Sri Narendra Kumar Tiwari, learned Advocate has put in appearance on behalf of the respondent no.2. He, however, submits that once the provisional assessment notice had been served on the petitioner, the final assessment order must have been passed by the respondent no.2 after considering the objections raised by the petitioner. There is no requirement of granting any opportunity of personal hearing to the petitioner unless demanded.

Be that as it may, having perused the record of the writ petition and noticing the fact that the petitioner is claiming to be son of one Rampyarey Yadav, who had a domestic electricity connection in the premises-in-question, the objections raised by the petitioner regarding the inspection report dated 12.12.2019 are required to be considered by respondent no.2 afresh, strictly in accordance with the provision of Clause 8.1(b) of the UP Electricity Supply Code, 2005.

In order to grant one more opportunity to the petitioner, the

present writ petition is being ***disposed of*** with the directions as follows:-

(i) The respondent no.2 shall fix a date for grant of personal hearing to the petitioner to deal with his objection dated 21.01.2020 within a period of three weeks from the date of receipt of copy of this order.

(ii) In case, on the date fixed the petitioner appears before the respondent no.2, he shall take a fresh consideration to the objections raised by the petitioner. All points of objections shall be dealt by the respondent no.2 while making fresh decision in the matter of provisional assessment notice dated 29.12.2019, by passing a reasoned and speaking order in accordance with law within a further period of four weeks thereafter.

(iii) After a period of two months from today or till fresh decision is taken by the respondent no.2, no coercive measure shall be taken against the petitioner pursuant to the demand notice dated 07.07.2020.

However, in case the petitioner fails to appear before the respondent no.2 on the date fixed, it would be open for the respondents to proceed in accordance with law.

Order Date :- 25.3.2021

P Kesari